

[24 & 25 GEO. 5.] *Ministry of Health* [Ch. xlv.]
*Provisional Order Confirmation (Burnham and District
Water) Act, 1934.*



CHAPTER xlv.

An Act to confirm a Provisional Order of the Minister of Health relating to the Burnham Dorney and Hitcham Waterworks Company Limited. A.D. 1934.
[12th July 1934.]

WHEREAS under the provisions of the Gas and Water Works Facilities Act 1870 and the Gas and Water Works Facilities Act 1870 Amendment Act 1873 the Minister of Health has made a provisional order which needs confirmation by Parliament : 33 & 34 Vict. c. 70.
36 & 37 Vict. c. 89.

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

1. The order of the Minister of Health which as amended is set out in the schedule to this Act is hereby confirmed and shall have full validity and force. Order in schedule confirmed.

2. This Act may be cited as the Ministry of Health Provisional Order Confirmation (Burnham and District Water) Act 1934. Short title.

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SCHEDULE.

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BURNHAM AND DISTRICT WATER.

Provisional order under the Gas and Water Works Facilities Act 1870 and the Gas and Water Works Facilities Act 1870 Amendment Act 1873 empowering the Burnham Dorney and Hitcham Waterworks Company Limited to increase their capital and for other purposes.

The Minister of Health in pursuance of the powers given to him by the Gas and Water Works Facilities Act 1870 the Gas and Water Works Facilities Act 1870 Amendment Act 1873 and of all other powers enabling him in that behalf hereby orders as follows :—

PART I.

PRELIMINARY.

Short and
collective
titles.

1.—(1) This order may be cited as the Burnham and District Water Order 1934.

(2) The Burnham and District Water Order 1896 the Burnham and District Water Order 1899 the Burnham and District Water Order 1902 the Burnham and District Water Order 1924 and this order may be cited together as the Burnham and District Water Orders 1896 to 1934.

Commence-
ment of
order.

2. This order shall come into operation upon the date of the Act of Parliament confirming it.

Incorpora-
tion of Acts.

3. So far as the same relate to the powers conferred by this order the provisions of the Waterworks Clauses Acts 1847 and 1863 are (except where expressly varied by this order) incorporated with and form part of this order :

Provided that section 44 of the Waterworks Clauses Act 1847 shall for the purposes of this order have effect as if the words “with the consent in writing of the owner or reputed owner of any such house or of the agent of such owner” were omitted therefrom.

For the purpose of such interpretation the term “special Act” in the said Acts shall be construed to mean this order.

Interpreta-
tion.

4.—(1) In this order unless the context otherwise requires—
“the commencement of this order” means the date upon which this order comes into operation ;

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- “ the limits of supply ” means the limits within which the Undertakers are from time to time authorised to supply water; A.D. 1934.
 —
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- “ the Minister ” means the Minister of Health;
- “ the order of 1896 ” means the Burnham and District Water Order 1896 as confirmed by the Water Orders Confirmation Act 1896;
- “ the order of 1924 ” means the Burnham and District Water Order 1924 as confirmed by the Ministry of Health Provisional Orders Confirmation (Water) Act 1924;
- “ the Undertakers ” means the Burnham Dorney and Hitcham Waterworks Company Limited;
- “ the undertaking ” means the water undertaking of the Undertakers as for the time being authorised by any Act or order.

(2) The several words terms and expressions to which by the Acts incorporated with this order and by the Gas and Water Works Facilities Act 1870 meanings are assigned have in this order the same respective meanings.

PART II.

FINANCIAL.

5. In addition to the capital authorised by the order of 1924 the Undertakers may for the purposes of the undertaking raise further share capital (in this order referred to as “ further capital ”) not exceeding forty thousand pounds after taking into account the premiums (if any) obtained on the issue thereof: Further capital.

Provided that the share capital of the Undertakers for the purposes of the undertaking shall not exceed in the whole ninety thousand pounds.

6. The Undertakers shall not in any year declare or make out of the profits of the undertaking any larger dividend on the further capital than seven pounds in respect of every one hundred pounds actually paid up of so much of such capital of the undertaking as may subject to the provisions of this order be issued as ordinary capital except so far as a larger dividend may at any time be necessary to make up the deficiency of any previous dividend which shall have fallen short of the said seven pounds per centum per annum or than six pounds in respect of every one hundred pounds of so much of the further capital as may be issued as preference capital. Limit of dividend on further capital.

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Capital to
be sold by
auction or
tender.

7.—(1) All ordinary or preference shares issued by the Undertakers for the purposes of the undertaking after the commencement of this order shall be offered for sale by public auction or tender in such manner at such times and subject to such conditions of sale as the directors shall from time to time determine :

Provided as follows :—

- (a) Notice of the intended sale shall be given in writing to the clerk of the local authority of every district within the limits of supply and to the secretary of the London Stock Exchange at least seven days before the day of auction or the last day for the reception of tenders as the case may be and shall also be duly advertised once in each of two consecutive weeks in one or more local newspapers circulating within the limits of supply ;
- (b) A reserve price shall be fixed and notice thereof shall be sent by the Undertakers in a sealed letter to be received by the Minister not less than twenty-four hours before but not to be opened till after the day of auction or last day for the receipt of tenders as the case may be ;
- (c) In the case of a sale by auction no lot offered for sale shall comprise shares of greater nominal value than one hundred pounds and no bid shall be recognised unless it is in advance of the last preceding bid ;
- (d) In the case of a sale by tender no preference shall be given to one of two or more persons tendering the same sum except that the offer by tender of any holder of ordinary or preference shares of the Undertakers may be accepted in preference to the offer of the same sum by any person not such a holder as aforesaid and preference may in like manner be given to the offer of any employee of the Undertakers ;
- (e) It shall be one of the conditions of sale that the total sum payable by the purchaser shall be paid to the Undertakers within three months after the date of the auction or of the acceptance of the tender as the case may be.

(2) Any shares which have been so offered for sale and are not sold may be offered at the reserve price in manner prescribed by a resolution of the directors to the holders of ordinary and preference shares of the Undertakers and to the employees of the Undertakers and to consumers of water supplied by the Undertakers in such proportions as the directors may think fit or to one or more of those classes of persons only :

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Provided that in the case of an offer to holders of shares if the aggregate amount of shares applied for shall exceed the aggregate amount so offered as aforesaid the same shall be allotted to and distributed amongst the applicants as nearly as may be in proportion to the amounts applied for by them respectively.

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(3) Any shares which have been offered for sale in accordance with subsection (1) or with subsections (1) and (2) of this section and are not sold may be disposed of for the purpose of realising the best price obtainable at such price and in such manner as the directors may determine.

(4) As soon as possible after the conclusion of the sale or sales the Undertakers shall send a report thereof to the Minister stating the total amount of each class of shares sold the total amount obtained as premium (if any) and the highest and lowest prices obtained for each class of shares.

8.—(1) Notwithstanding anything in section 7 (Capital to be sold by auction or tender) of this order it shall be lawful for the Undertakers with the consent of the Minister and subject to such conditions as the Minister may think fit to impose to offer for subscription by the public free from the provisions of the said section any shares of the undertaking to be issued after the commencement of this order and on any such offer to pay a commission not exceeding two and a half per centum to any person in consideration of his subscribing or agreeing to subscribe whether absolutely or conditionally for any such shares or procuring or agreeing to procure subscriptions whether absolute or conditional for such shares :

Provisions
as to pay-
ment of
commission
on sale of
capital.

Provided that the payment of the commission and the amount or rate per centum of the commission paid or agreed to be paid shall be disclosed in every prospectus advertisement or other document of the Undertakers inviting subscription for such shares.

(2) Nothing in this section shall affect any power of the Undertakers to pay brokerage.

(3) Nothing in this order shall be deemed to authorise the issue of any shares at a discount except as provided by the Companies Act 1929.

9. In case in any year or in any half-year (if the Undertakers declare a dividend half-yearly) the funds of the Undertakers applicable to dividend are insufficient to pay the full amount of the prescribed maximum rate of dividend on each class of ordinary shares in the original or additional or new or further capital of the Undertakers for the purposes of the undertaking

Prescribed
rates to be
paid propor-
tionately.

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Limit of
borrowing
powers.

10. The amount of all moneys borrowed by the Undertakers for the purposes of the undertaking and secured by mortgage of the undertaking shall not at any time exceed in the whole one-half of the amount of the share capital actually paid up and of any premiums paid in respect thereof and notwithstanding anything in section 13 of the order of 1924 no higher rate of interest than five per centum per annum shall be paid by the Undertakers without the consent of the Minister in respect of any moneys borrowed by the Undertakers for the purposes of the undertaking after the commencement of this order and secured as aforesaid.

Reserve
fund.

11.—(1) The directors may (subject to the provisions of section 13 (Limit on reserve and contingency funds) of this order) if they think fit in any year set apart out of the clear profits of the undertaking such sums as they may determine and any sums so set apart may from time to time be invested in any securities in which trustees are authorised by law to invest money or in such other manner as shall be authorised by a resolution of the directors and the dividends and interest arising from such securities may also be invested in the same or like securities in order that the same may accumulate at compound interest. The fund so formed shall form a reserve fund to answer any deficiency which may at any time happen or have happened in the amount of divisible profits or to meet any extraordinary claim or demand which may at any time arise against the Undertakers and if such fund be at any time reduced it may thereafter be again restored within the limit prescribed by this section and so from time to time as often as such reduction shall happen :

Provided that no sum of money shall be taken from the said fund for the purpose of meeting any extraordinary claim or demand unless it be first certified by two justices that the sum so proposed to be taken is required for the purpose of meeting an extraordinary claim or demand within the meaning of this section.

(2) Any money standing to the credit of the reserve or reserved fund of the Undertakers at the commencement of this order shall forthwith be carried by the Undertakers to the credit of the reserve fund authorised by this section.

(3) Save as in this section provided no sum shall in respect of the undertaking in any year be carried by the Undertakers to any reserve or reserved fund.

Contingency
fund.

12. The directors may if they think fit in any year appropriate out of the revenue of the undertaking as part of the expenditure

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on revenue account such sum as they may determine (subject to the provisions of the next succeeding section of this order) to a fund to be called "the contingency fund" which fund shall be applicable to meet contingencies or for renewing repairing or improving the works connected with the undertaking or any part thereof.

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13.—(1) The aggregate amount which may be carried in any year to any reserve fund formed in pursuance of section 11 (Reserve fund) of this order and to any contingency fund formed in pursuance of the immediately preceding section of this order shall not together exceed a sum equal to one per centum of the capital for the time being expended by the Undertakers for the purposes of the undertaking.

Limit on
 reserve and
 contingency
 funds.

(2) The aggregate amount standing to the credit of any such reserve fund and contingency fund of the Undertakers as aforesaid shall not together at any time exceed a sum equal to ten per centum of the capital for the time being expended by the Undertakers for the purposes of the undertaking.

14. It shall be lawful for the Undertakers in respect of the undertaking to carry forward at the end of any year to the credit of the profit and loss (net revenue) account any sum not exceeding the total of the following amounts (that is to say) :—

Limitation
 on carry
 forward.

- (a) The amount required by the Undertakers for paying any dividends or interest which the Undertakers are entitled or required to pay but have not paid in respect of that year ;
- (b) An amount equal to the total sum which the Undertakers would be lawfully entitled to distribute as dividends on their preference and ordinary capital in respect of the next following year ;
- (c) An amount equal to the total sum which the Undertakers will be required to pay during the next following year as interest in respect of that year on any mortgages.

15. All moneys raised under this order including premiums shall be applied only to purposes of the undertaking to which capital is properly applicable and any sum of money which may arise by way of premium from the issue of share capital shall not be considered as part of the capital of the Undertakers entitled to dividend.

Application
 of moneys.

PART III.

RATES AND CHARGES.

16. The Undertakers shall not be bound to supply with water any nursing home school club hotel public house restaurant

Supply
 to certain
 premises.

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inn or boarding house otherwise than by meter upon such terms as may be agreed between the Undertakers and the occupier or other person having the charge thereof or at the rates which the Undertakers are under the provisions of section 31 of the order of 1924 entitled to charge for supply by meter :

Provided that the provisions of this section shall not apply to any such premises which are habitually occupied by less than twelve persons.

Charges for
supply by
hose-pipe.

17.—(1) Where water supplied for domestic purposes otherwise than by meter is used for horses or washing carriages or motor cars or for other purposes in stables garages or premises where horses carriages or motor cars are kept the Undertakers may if a hose-pipe or other similar apparatus is used charge such additional sum not exceeding twenty shillings per annum as they may prescribe and (where more motor cars than one are kept) a further sum not exceeding ten shillings per annum for each motor car beyond the first.

(2) The additional sums chargeable under this section shall be payable at the same dates and be recoverable in all respects with and in the same manner as the rate for the supply of water for domestic purposes to the premises.

(3) Where water supplied by the Undertakers to a person who takes a supply both for domestic purposes and by measure for trade or other purposes is used by him by means of a hose-pipe or other similar apparatus for horses or washing carriages or motor cars or for other purposes in stables garages or premises where horses carriages or motor cars are kept the Undertakers may if they think fit require that all water so used shall be taken by meter and paid for accordingly.

(4) In all cases to which this section shall apply and in which a meter with an inlet and outlet not exceeding respectively three-eighths of one inch in diameter is sufficient for the purpose of the supply the Undertakers shall supply and fix the meter at their own expense and shall be entitled to charge for the use of the same a rent not exceeding six shillings per annum.

Charges for
supplies for
refrigerating
apparatus
&c.

18.—(1) In this section "the prescribed rates" shall be deemed to be the rates at which the Undertakers are required to supply water by meter to those owners and occupiers referred to in section 31 of the order of 1924.

(2) Where a person who takes a supply of water for domestic purposes from the Undertakers otherwise than by meter desires to use for or in connection with a refrigerating apparatus or for or in connection with any apparatus (other than apparatus used for softening water for domestic supplies which does not require water for cleaning cooling regenerating or for motive power or

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similar purposes) depending while in use upon a supply of continuously running water any of the water so supplied the Undertakers may if they think fit require that all water so used shall—

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- (a) be taken by meter and paid for at the prescribed rates for a supply by meter and in that event the minimum quarterly charge for the water shall be five shillings; or
- (b) be paid for at such rates as may be agreed between the consumer and the Undertakers.

19.—(1) A person shall not be entitled to demand or continue to receive from the Undertakers a supply of water to any caravan shack hut tent or other like structure unless he has—

Special
 terms for
 supplies to
 caravans &c.

- (a) agreed with the Undertakers to take a supply of water by meter and to pay to the Undertakers such minimum annual sum as will give them a reasonable return on the capital expenditure incurred by them in providing the supply or supplies required by him and will cover other standing charges incurred by them in order to meet the possible maximum demand for his caravan shack hut tent or structure and will yield a reasonable return on the cost of the water consumed or used by him; and
- (b) secured to the reasonable satisfaction of the Undertakers by way of deposit or otherwise payment of such a sum as may be reasonable having regard to the possible maximum demand of such person for his caravan shack hut tent or structure.

(2) The sum to be so paid and the security to be so given shall be determined in default of agreement by a court of summary jurisdiction who may also order by which of the parties the costs of the proceedings before them shall be paid and the decision of the court shall be final and binding on all parties.

(3) Notwithstanding anything in this section or any other provisions of the existing orders of the Undertakers or this order the Undertakers shall not (unless so authorised by the Minister) supply water to any caravan shack hut tent or other like structure if the local authority for the district in which such caravan shack hut tent or other like structure is situated objects in writing to the supply being given.

20. Section 14 of the order of 1924 shall be read and have effect as if the following words had been added at the end of that section (namely):—

Amendment
 of section 14
 of order of
 1924.

“The provisions of section 73 of the Waterworks
 Clauses Act 1847 shall mutatis mutandis extend and apply
 to any payments made under the provisions of this section

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by the owner of any house and as if such first-mentioned provisions applied in the case of any lease or agreement whether made before or after the commencement of this order."

Amendment
of section 25
of order of
1924.

21. Section 25 of the order of 1924 shall be read and have effect as if the following words had been added at the end of that section (namely) :—

"(3) Subject to the provisions of the Local Government Act 1933 any expenses incurred by a rural district council in pursuance of this section shall be defrayed as special expenses on the contributory places in respect of which the guarantee or contract is entered into."

PART IV.

SUPPLY.

Separate
communication
pipes
may be
required.

22.—(1) The Undertakers shall not be bound to supply more than one house by means of the same communication pipe and they may if they think fit by a notice in writing require the owner of any house supplied by them with water to lay a separate pipe from the main pipe into that house :

Provided that this section shall not apply in the case of a communication pipe which at the commencement of this order is used for the supply of water to more than one house unless and until such communication pipe becomes defective or requires renewal in which event the Undertakers may require that a separate pipe be laid from the main pipe into each house formerly supplied with water by means of that communication pipe.

(2) If the owner of any house supplied with water by the Undertakers fails within a period of one month after the receipt of a notice under subsection (1) of this section to provide a separate pipe from the main pipe into that house the Undertakers may themselves do the work and may recover from that owner the reasonable cost so incurred by them summarily as a civil debt.

Undertakers
to connect
communication
pipes
with mains.

23. Notwithstanding anything in any Act or order relating to the Undertakers the Undertakers shall have the exclusive right of executing any works on any of the water mains of the Undertakers for connecting any communication pipe therewith and the Undertakers shall on the request of any owner or occupier of any premises who is entitled to be supplied with water by the Undertakers execute on any such main (subject to the provisions so far as applicable of the Waterworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes) any work which shall be necessary to connect the communication or service pipe of such owner or occupier therewith

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and the reasonable expenses incurred by the Undertakers in so doing shall be repaid by the owner or occupier so requesting and shall be recoverable as a civil debt.

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24. In the case of all new buildings the erection of which is commenced after the commencement of this order within the limits of supply and connected with the mains of the Undertakers the Undertakers may in cases where the communication pipes are laid by the owner or by the Undertakers at his request require the owner at the time when the pipes are laid to insert or to have inserted a stop-cock in the communication or service pipe from the said premises in some position as near as is reasonably possible to the main of the Undertakers from which the supply is given to the said premises and if such owner make default the Undertakers may insert a stop-cock in such communication or service pipe and recover the expense from the owner as a civil debt.

Stop-cocks
 to be fitted
 in com-
 munication
 pipes.

25.—(1) In addition to the powers conferred by section 28 of the order of 1896 the Undertakers may make regulations as to the testing and stamping of taps cocks ferrules valves flushing cisterns flushing apparatus and other similar fittings and apparatus and prescribing the charge for such testing and stamping and such regulations shall be subject to confirmation by the Minister as if they had been made in pursuance of the said section of the order of 1896 :

Extension of
 powers for
 preventing
 waste &c. of
 water.

Provided that nothing in this subsection or in any regulations made thereunder shall apply to any taps cocks ferrules valves flushing cisterns flushing apparatus or similar fittings and apparatus used on any premises (not being a dwelling-house) which form part of the railway of the Great Western Railway Company so long as such fittings or apparatus do not cause undue consumption misuse or contamination of water which is supplied by the Undertakers.

(2) Any person who shall forge or counterfeit any stamp or mark used by the Undertakers or by the authority of the Undertakers for any of the purposes of this section or who shall use or supply anything marked with any such stamp or mark knowing the same to be forged or counterfeited shall for every such offence be liable to a penalty not exceeding twenty pounds.

26. Section 34 of the order of 1896 shall be read and have effect as if the following words had been added at the end of that section (namely) :—

Amendment
 of section 34
 of order of
 1896.

“ In the event of any meter used by a consumer of water being proved to register erroneously such erroneous registration shall be deemed to have first arisen during

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the then last preceding quarter of the year unless it be proved to have first arisen during the then current quarter. The amount of the allowance to be made to or of the surcharge to be made upon the consumer by the Undertakers shall be paid by or to the Undertakers to or by the consumer as the case may be and in the case of a surcharge shall be recoverable in the like manner as rates for water are recoverable by the Undertakers."

Extension of
power to
inspect
premises.

27. In addition to the powers conferred by section 57 of the Waterworks Clauses Act 1847 any duly authorised officer of the Undertakers may at all reasonable times between the hours of four o'clock in the afternoon and one hour after sunset enter into any house or premises supplied with water by the Undertakers in order to examine if there be any waste or misuse of such water and if any person hinder any such officer from entering either under the said section 57 or under this section or making an examination under that section or this section he shall for every such offence be liable to a penalty not exceeding five pounds :

Provided that no person shall for the same offence have the water supplied to him turned off in pursuance of the said section 57 and be liable to a penalty under this section.

Purchase of
water in
bulk.

28. The Undertakers may enter into and carry into effect agreements with any local authority company or person supplying water under parliamentary authority for the purchase of water in bulk by the Undertakers for such price and on such terms and conditions and for such period as may be agreed upon and any water so purchased may be used by the Undertakers for the purposes of the undertaking.

As to streets
forming
boundary of
limits of
supply.

29.—(1) Where the limits of supply are bounded by or abut upon any street or part of a street wholly outside those limits the Undertakers may for the purpose of supplying water to the owner or occupier of any premises abutting upon that street or part of a street and being within the limits of supply exercise with respect to such street or part of a street outside those limits the like powers of breaking up the same for the purposes of laying maintaining inspecting repairing and renewing pipes as are exerciseable by them with respect to streets within the limits of supply subject nevertheless to the observance of the conditions imposed on an exercise of those powers.

(2) The owner and occupier of any premises to which subsection (1) of this section applies may for the purpose of laying any communication pipe or of complying with any obligation to maintain any pipe or apparatus which he is liable to maintain exercise the like power of opening the ground between any main or pipe of the Undertakers and his premises

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and of opening or breaking up so much of the pavement of the street as shall be between such main or pipe and his premises and any sewer or drain therein as if such street or part of a street were wholly within the limits of supply.

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(3) Nothing in this section shall entitle or require the Undertakers to supply water to the owner or occupier of any premises abutting upon any such street and being outside the limits of supply.

30.—(1) If the owner or occupier of any premises outside the limits of supply desires to obtain from the Undertakers a supply of water the Undertakers may with the approval of the Minister and subject to the provisions of this section and to such conditions (if any) as the Minister may impose supply water to those premises.

Supply of
 water by
 Undertakers
 to premises
 outside
 limits of
 supply.

(2) Before an application is made to the Minister for an approval under this section the Undertakers shall obtain the consent of the local authority within whose area the premises are situate and of any undertakers authorised by an Act or order to supply water within whose limits of supply the premises are situate.

(3) The charge made by the Undertakers for any water supplied for any purpose in pursuance of this section shall not be less than the charge which would be made by the Undertakers for water supplied for a similar purpose within the limits of supply.

(4) Where the Minister has given his approval to a supply of water to any premises by the Undertakers under this section the provisions of the Acts and orders from time to time relating to the Undertakers shall subject to any necessary modifications apply in relation to the laying of pipes for affording a supply to those premises and otherwise for the purposes of and in relation to that supply as if the limits of supply extended as far as and so as to include the premises in respect of which a supply approved by the Minister is to be given.

(5) An approval given by the Minister under this section shall not authorise the Undertakers to supply water to any premises outside the area included within the limits shown on the "deposited map" as such map is defined by section 119 of the Thames Conservancy Act 1932.

PART V.

SUPPLEMENTAL.

31.—(1) The Undertakers shall deliver to the Registrar of Companies a printed copy of the Act passed for the confirmation of

Copy of con-
 firmation
 Act to be
 registered.

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A.D. 1934. this order and he shall retain and register the same and if such
— copy is not so delivered within three months from the passing
Burnham of that Act the Undertakers shall incur a penalty not exceeding
and District two pounds for every day after the expiration of those three
Water Order. months during which the default continues and any director
or manager of the Undertakers who knowingly and wilfully
authorises such default shall incur a like penalty Every penalty
under this section shall be recoverable summarily.

(2) There shall be paid to the Registrar by the Undertakers
on such copy being registered the like fee as is for the time being
payable under the Companies Act 1929 on registration of any
document other than a Memorandum of Association or the
abstract required to be delivered to the Registrar by a receiver
or manager or the statement required to be sent to the Registrar
by the liquidator in a winding-up in England.

Recovery of 32. Proceedings for the recovery of any demand made under
demands. the authority of any Act or order from time to time relating
to the undertaking whether provision is or is not made for the
recovery in any specified court or manner may be taken in any
county court having otherwise jurisdiction in the matter provided
that the demand does not exceed the amount recoverable in that
court in a personal action.

Recovery of 33. Save as otherwise expressly provided by any Act or
penalties &c. order from time to time relating to the undertaking all offences
against any such Act or order and all penalties forfeitures costs
and expenses imposed by or recoverable under any such Act
or order or any byelaw made in pursuance of a power thereby
conferred may be prosecuted and recovered in a summary
manner :

Provided that costs or expenses except such as are
recoverable along with a penalty shall not be recovered as
penalties but may be recovered summarily as civil debts.

Penalties not 34. Penalties imposed under any Act or order from time
cumulative. to time relating to the undertaking and the Acts wholly or in
part incorporated therewith for one and the same offence shall
not be cumulative.

Repeal. 35. The following sections of the order of 1924 are hereby
repealed :—

Section 6 Shares to be sold by auction or tender ;

Section 16 Undertakers not bound to supply several houses
by one pipe ;

Section 30 Further provision as to supply by meter for
certain purposes.

[24 & 25 GEO. 5.] *Ministry of Health* [Ch. xlvi.]
*Provisional Order Confirmation (Burnham and District
Water) Act, 1934.*

A.D. 1934.

36. All costs charges and expenses of and incidental to the application for this order and the preparation making and confirmation of this order shall be paid by the Undertakers and may in whole or in part be defrayed out of revenue and in so far as they may be defrayed out of revenue may be spread over a period not exceeding five years.

—
*Burnham
and District
Water Order.*

Costs of
order.

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FOR

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